

No. 15(31)2020/FoSCoS/RCD/FSSAI
Food Safety and Standards Authority of India
(A Statutory Authority established under the Food Safety and Standards Act, 2006)
(Regulatory Compliance Division)
FDA Bhawan, Kotla Road, New Delhi - 110002

Dated, the 15th December 2020

Subject: Provision for making online request by FBO in FoSCoS for reinstating the rejected applications for FSSAI licenses and registrations - reg.

Food Safety Compliance System (FoSCoS) has been launched pan-India wef 1st Nov 2020. Till now, there is no provision for FBOs to make online request against rejection and reinstatement of application for licenses or registrations. Request for rejected applications can only be made by FBOs in the physical form to the concerned Authorities, which thereafter, forwarded to FSSAI Hq through proper channel for reactivation of applications. A SoP in this regard has also been issued by FSSAI vide communication number 11(9)2020/Misc/Representations/RCD/FSSAI dated 7th July, 2020.

2. It is informed that functionality has been developed in FoSCoS for FBOs to file an online request against rejection and reinstatement of application for licenses or registrations. As per said Regulations, requests for rejected applications for Registration Certificates are routed to concerned Designated Officer while requests for rejected license applications are routed to Commissioner Food Safety of the State for consideration and taking necessary actions. Requests for rejected Central License applications are routed to CEO, FSSAI for consideration. Acceptance of request by the concerned Authority will reactivate the application. The present functionality has only facility for reactivation of rejected application. It does not have facility to process the request, raise queries or consider technical grounds of request (if any) and is not a process of appeal.
3. Further, keeping in view the CoVID-19 pandemic phase in the country and the migration phase from FLRS to FoSCoS, it has been decided to have a 6 months time period for making an online request on rejected application by an FBO to provide ease of doing business to food industry during the existing situations of CoVID-19 pandemic and migration of FSSAI's licensing and registration system. This time period shall be progressively reduced in future to a 15 days window as per Section 32 (5) of Food Safety and Standards Act, 2006.
4. The Annexure-1 of above mentioned SoP (for reactivation of rejected applications for licenses and registrations) is hereby omitted.
5. This issues with the approval of the Competent Authority.

Encl: As stated


(Dr Shobhit Jain)

Executive Director (Compliance Strategy)
Email: ed-office@fssai.gov.in

To

1. Commissioner of Food Safety of concerned States/UTs and Regional Directors of FSSAI
2. CITO – for uploading on the website

Copy for information to -

1. Head (RCD)
2. PPS to Chairperson, FSSAI
3. PS to CEO, FSSAI

- * Window period for making request
- a) Within 90 days from date of rejection
 - b) Within 30 days from date of rejection
 - c) Within 15 days from date of rejection

With effect from
1st Feb 2021
1st April 2021
1st July 2021

F. No. 11(9)2020/Msc./Representation/RCD/FSSAI
Food Safety and Standards Authority of India
(A Statutory body under Ministry of Health & Family Welfare)
(Regulatory Compliance Division)
FDA Bhawan, Kotla Road, New Delhi -- 110002

Dated: 7th July, 2020

To,

The Commissioner of Food Safety of States / UTs.

Subject: Standard Operating Procedures (SoP) for reactivation of rejected applications and Change in User Profile including new login credentials, email ID and Mobile No etc. --regd.

Sir / Madam,

FSSAI has framed the Standard Operating Procedures (SoP) for reactivation* of rejected applications and change in user profile including new login credentials, email ID and Mobile No etc. These SoPs are annexed as Annexure-I and Annexure-II for information and compliance.

2. This issues with the approval of Competent Authority.

Encl: (02) as above:

Yours faithfully,

(Dr. Shobhit Jain)

Executive Director (RCD)

Tel: 011-23237421

Email: ed-office@fssai.gov.in

Copy to :

- (i) CITO, FSSAI with a request to upload the SoP on web portal of FSSAI.
- (ii) PS to CEO, FSSAI

NOTE: * SOP for reactivation of rejected applications (Annexure-I) has been omitted vide FSSAI letter no. 15(31)2020/FOSCOs/RCD/FSSAI dated 15th Dec. 2020. (copy enclosed.)

* Omitted wcf
15/12/2020
Annexure-I

Standard Operating Procedure for reactivation of rejected applications

1. Cases of rejection / cancellation of applications for License / Registration to be considered:
 - a) Applications rejected automatically by system due to non-furnishing of information / documents by FBO within stipulated time of 30 days.
 - b) Applications rejected by DO, in case of non-receipt of requisite documents / information as per FSS Regulations from the FBO after repetitive queries.
 - c) Applications rejected by FBO inadvertently while processing the applications.
 - d) Applications rejected due to technical glitch while processing the applications either by DO or FBO.
2. Central License: FBOs shall apply to concerned Regional Office (RO) of FSSAI for reactivation of license application within 6 month from the date of rejection of application.
 - a) Director, RO shall examine the request on the basis of merits of the case and send his / her recommendation to FSSAI HQ (RCD) at enforcement1@fssai.gov.in within 30 days of receipt of such request from the FBO.
 - b) On receipt of recommendation from the RO, RCD shall examine the case.
 - c) The competent authority to decide such case shall be Executive Director, RCD.
 - d) The approval of the case shall be referred to by RCD to IT division and IT division shall re-activate the application.
 - e) In exceptional and urgent cases, FBO may approach FSSAI HQ directly. These cases will be decided on the merit of case with the approval of CEO.
3. State License / Registration: All FBOs shall apply with concerned State Food Safety Commissioner within 6 month from the date of rejection of application for License / Registration.
 - a) Commissioner Food Safety of the State, in case of State License or DO in case Registration shall examine the request on the basis of merit of the case and send his / her recommendation to RC Division at enforcement1@fssai.gov.in within 30 days from the receipt of such request from the FBOs.
 - b) Recommendation of Commissioner for license / DO for registration will be sent to IT Division for reactivation of the application.
 - c) On receipt of such request from RCD, IT Division shall re activate the application and communicate the CFS / DO under intimation to RCD.

Annexure-II

Standard Operating Procedure for change in User Profile including login credentials, email ID and Mobile No. etc.

1. The FBOs intending to change their user profile are required to submit a representation in this regard to Joint Director, Regulatory Compliance Division, 4th Floor, FDA Bhawan, New Delhi by post or email at enforcement1@fssai.gov.in
2. Application should be on the letterhead of the firm / company duly signed by authorized person of the firm.
3. In case, FBOs want new login credential, they have to create new login ID & Password and the same should be indicated in their application so that IT team can validate and map the licenses / registrations in new login credentials
4. The following documents should be enclosed with the application:
 - a) A copy of photo identity card such as Aadhar Card, Voter ID card etc.
 - b) A copy of existing license (s) / registration certificate (s) / application (s) in Form A or B as applicable.
5. The requests shall be considered by RCD and sent to IT division. IT division will verify the credentials of the firm and update the User ID profile and communicate to applicant under intimation to RCD.
